

24NNCV06260 24NNCV06260

County: los-angeles

Division: Civil Law and Motion

Department: D

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Case Number: 24NNCV06260 Hearing Date: August 28, 2026 Dept: D

TENTATIVE RULING

Calendar: 10

Date: August 28, 2026

Case No: 24NNCV06260 Trial Date: Not yet set

Case Name: Haase v. Magdangal, et al.

MOTIONS TO COMPEL DISCOVERY

Moving Party: Defendant, Rey Magdangal

Responding Party: Plaintiff, Cynthia Haase [Unopposed]

RELIEF REQUESTED:

Compel Plaintiff's responses to Form Interrogatories, Special Interrogatories, and Requests for Production, and deem Requests for Admission Admitted.

CAUSES OF ACTION: from Form Complaint

1) Motor Vehicle Negligence

CHRONOLOGY:

Discovery Served: August 13, 2025

Responses Served: No responses served

Motion Served: March 20, 2026

SUMMARY OF FACTS:

The Complaint alleges that on December 3, 2022, in Monrovia, California, defendant Rey Magdangal ("Defendant") negligently operated a motor vehicle in such a manner as to cause injury to plaintiff Cynthia Haase ("Plaintiff").

ANALYSIS:

A motion to compel an initial response can be made on the ground that a party did not serve a timely response to interrogatories or a demand to produce. (CCP §§ 2030.290, subd. (a) [interrogatories], 2031.300, subd. (a) [demand to produce]; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 404.) The discovering party can also make a motion to deem as admitted any unanswered requests for admission or any requests answered in a late or unverified response. (CCP § 2033.280, subd. (b); CCP, § 2033.240, subd. (a) [RFA responses must be signed by responding party under oath]; *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [unsworn response to RFAs is treated like no response].) These requests are not automatically deemed admitted; the discovering party must make the motion. (CCP § 2033.280, subd. (b).)

To establish this ground, a movant must show:

- (1) Proper service (CCP §§ 2030.080, subd. (a) [interrogatories], 2031.040 [demand to produce]; § 2033.070 [requests for admission])
- (2) Expiration of the deadline for the initial response 30 days after service or on date agreed to by parties (CCP §§ 2030.260, subds. (a), (b) [interrogatories], 2031.260, subds. (a), (b) [demand to produce] 2033.250, subds. (a), (b) [requests for admission]); and
- (3) No timely response. (CCP §§ 2030.290 [interrogatories], 2031.300 [demand to produce] § 2033.280, subd. (b) [requests for admission])

A court must deny a motion to compel initial discovery where the discovery sought is outside the scope of discovery. (*CBS, Inc. v. Superior Court* (1968) 263 Cal.App.2d 12, 19; CCP § 2017.010 [scope of discovery].)

The FROGs, SROGs, RFPs, and RFAs were served via electronic service on Plaintiff on August 13, 2025. (All Mots., Leaton Decl., Ex. A.) The deadline to respond was 30 days after service, plus two court days for electronic service. (CCP § 1010.6 subd. (a)(3)(B).) Thus responses were due on September 16, 2025. As of the date of the hearing on these motions, there is no evidence before the Court that Plaintiff has responded to the discovery requests.

Thus, the Motions are GRANTED.

Request for Sanctions

The Court must impose monetary sanctions against anyone—party, nonparty, or attorney—who unsuccessfully makes or opposes the motion, unless it finds that the person to be sanctioned acted with substantial justification or other circumstances make the imposition of the sanctions unjust. (CCP §§ 2030.290, subd. (c) [interrogatories], 2031.300, subd. (c) [demand to produce]; Sinaiko, supra, 148 Cal.App.4th at 404 [interrogatories and demand to produce].)

The Court must award sanctions when a party's response to request for admissions is untimely, and the discovering party makes a motion to deem the requests admitted. (CCP, § 2033.280, subd. (c); Appleton, supra, 206 Cal.App.3d at 635-636 [sanctions are mandatory].)

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

Even after a party provides discovery responses, a party can keep its motion on calendar and the court has authority to grant sanctions, even if it denies the motion to compel responses "as essentially unnecessary, in whole or in part." (Sinaiko, supra, 148 Cal.App.4th at 409.)

The burden is on the party subject to sanctions to show substantial justification or injustice. (Mattco Forge, Inc. v. Arthur Young & Co. (1990) 223 Cal.App.3d 1429, 1436.)

Defendant requests sanctions in the amount of \$1,260.00 per motion. The amount requested is high given that the motions are largely duplicative and the hearings on the motions are scheduled concurrently. The sanctions are adjusted accordingly. Sanctions are awarded as follows: 3 hours total at \$300.00 per hour for attorneys fees of \$900.00 per motion.

RULING:

Defendant's motion to compel responses to Form Interrogatories is GRANTED. Plaintiff is ordered to serve full, Code-compliant, verified responses, without objections within 30 days.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$900.00 (3.0 hours @ \$300/hour) [4.0 hours requested] plus \$60 in filing fees [Amount Requested \$1,260.00], which sum is to be awarded in favor of Defendant Rey Magdangal and against Plaintiff Cynthia Haase and Plaintiff's attorney of record, Brittany Torbert, jointly and severally, payable within 30 days. (CCP, § 2030.290, subd. (c); CRC Rule 3.1348(a).)

Defendant's motion to compel responses to Special Interrogatories is GRANTED. Plaintiff is ordered to serve full, Code-compliant, verified responses, without objections within 30 days.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$900.00 (3.0 hours @ \$300/hour) [4.0 hours requested] plus \$60 in filing fees [Amount Requested \$1,260.00], which sum is to be awarded in favor of Defendant Rey Magdangal and against Plaintiff Cynthia Haase and Plaintiff's attorney of record, Brittany Torbert, jointly and severally, payable within 30 days. (CCP, § 2030.290, subd. (c); CRC Rule 3.1348(a).)

Defendant's motion to compel responses to Requests for Production, is GRANTED. Plaintiff is ordered to serve full, Code-compliant, verified responses, without objections within 30 days.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$900.00 (3.0 hours @ \$300/hour) [4.0 hours requested] plus \$60 in filing fees [Amount Requested \$1,260.00], which sum is to be awarded in favor of Defendant Rey Magdangal and against Plaintiff Cynthia Haase and Plaintiff's attorney of record, Brittany Torbert, jointly and severally, payable within 30 days. (CCP, § 2031.300, subd. (c); CRC Rule 3.1348(a).)

Defendant's motion to deem Requests for Admissions Admitted, is GRANTED. The admissions are hereby deemed ADMITTED as truth.

Monetary sanctions sought by the moving party:

Utilizing a lodestar approach, and in view of the totality of the circumstances, the Court finds that the total and reasonable amount of attorney's fees and costs incurred for the work performed in connection with the pending motion is \$900.00 (3.0 hours @ \$300/hour) [4.0 hours requested] plus \$60 in filing fees [Amount Requested \$1,260.00], which sum is to be awarded in favor of Defendant Rey Magdangal and against Plaintiff Cynthia Haase and Plaintiff's attorney of record, Brittany Torbert, jointly and severally, payable within 30 days. (CCP, § 2033.280, subd. (c); CRC Rule 3.1348(a).)

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.